



Maritime &
Coastguard
Agency

Guidance

MGN 685 (M+F) Issue of discharge books to seafarers

Published 10 May 2023

Contents

Summary

1. Purpose
2. Requirement to apply for a Discharge Book
3. Eligibility
4. How to demonstrate eligibility
5. Who is a seafarer?
6. Process
7. More information

Annex A



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Summary

This notice sets out the regulations, policies and procedures governing the issue of UK discharge books including:

- the requirement to hold a discharge book; and
- eligibility for a UK discharge book and how to demonstrate eligibility.

This is interim guidance pending public consultation on eligibility for seafarer documents.

To apply for a discharge book, download the application form MSF 4509 (<https://www.gov.uk/government/publications/application-for-a-discharge-book-and-or-british-seamans-card-msf-4509>).

1. Purpose

1.1 A discharge book is primarily a record of service at sea and is required in support of an application for a certificate of competency under the International Convention on the Standards of Training, Certification and Watchkeeping, 1978 as amended.

1.2 Entries in a discharge book also meet the requirement under Regulation 12(6) of the Merchant Shipping (Maritime Labour Convention) (Minimum requirements for seafarers etc.) Regulations 2014 to provide seafarers with a written record of work on a ship. Such a record must contain as a minimum:

- name, port of registry, gross or registered tonnage and official number of the ship.
- description of voyage.
- capacity in which seafarer worked on the ship.

- date on which seafarer started work on the ship.
- date and location of seafarer's discharge from the ship.

1.3 However, the form of such a record is not prescribed.

1.4 A discharge book is not a travel document. In some circumstances, a UK discharge book may be accepted as evidence that the holder is working on a ship, but it is not compliant with international requirements for a seafarer identity document^[footnote 1]; , and Governments outside the UK are not obliged to accept it as such. For seafarer identity documents see the Merchant Shipping (Seamen's Documents) Regulations 1987 Part 1.

1.5 Possession of a discharge book does not automatically mean that the holder is a seafarer for the purposes of other legislation.

2. Requirement to apply for a Discharge Book

2.1 Seafarers employed on UK ships (unless they are exempt - see below) are required to apply for a discharge book within seven days of becoming eligible. However, it is not a requirement to be in possession of a discharge book to join a ship.

3. Eligibility

3.1 The Merchant Shipping (Seamen's Documents) Regulations 1987 set out who is required to apply for a discharge book. The regulations use the term "seaman", which is defined in section 313 of the Merchant Shipping Act 1995: "'Seaman" includes every person (except masters and pilots) employed or engaged in any capacity on board any ship".

3.2 Although this notice uses the term "seafarer", it is the above definition which determines eligibility for a discharge book.

3.3 A master is not required to apply for a discharge book, but the MCA will issue a discharge book to a master of a ship assuming other criteria are met upon application.

3.4 Seafarers working on UK ships operating commercially are eligible for a UK discharge book unless explicitly excluded – see section 3.7 – or unless they already hold one from another administration which holds substantially the same information. A list of those administrations, correct at the date of the issue of this notice, is at annex A. The list will be kept up to date on the application form for a discharge book or British seamen's card, MSF 4509 (<https://www.gov.uk/government/publications/application-for-a-discharge-book-andor-british-seamans-card-msf-4509>).

3.5 UK seafarers are eligible for a UK discharge book even if they work on a non-UK ship, provided that they do not have a discharge book from one of the administrations listed in annex A.

3.6 In this context, UK seafarer means one who is a British Citizen as defined in the British Nationality Act 1981 (i.e. a person having a right of abode in the UK).

3.7 The following are not eligible for a UK discharge book:

- those working on non-seagoing vessels;
- those working on pleasure vessels who are not paid for their work;
- those working on unregistered vessels;
- those working on a “light ship” belonging to a general lighthouse authority;
- those other than UK seafarers, working on non-UK registered vessels;
- those working on ships on coastal voyages around the UK for the purposes of sea trials of the ship, its machinery or equipment; or solely in connection with the construction, alteration, repair or testing of the ship, and not engaged in the navigation of the ship;
- Crown employees who are not ordinarily employed as seafarers (e.g. MCA surveyors).

3.8 The MCA reserves the right to ask applicants for further information from their employer, in order to establish whether they are a seafarer.

4. How to demonstrate eligibility

4.1 The MCA will require the following as evidence of eligibility of a seafarer for a UK discharge book:

- evidence that applicant has right of abode in the UK: or

- if a seafarer who does not have right of abode in the UK, evidence that the seafarer is employed or engaged to work on a UK ship, and in either case;
- evidence that the applicant is required to have a discharge book (i.e. does not fall into one of the categories listed in the previous section as not eligible)
- any of the above evidence provided in support of an application for a discharge book must be valid at the date of issue of the discharge book.

4.2 For more details see guidance on form MSF 4509

(<https://www.gov.uk/government/publications/application-for-a-discharge-book-and-or-british-seamans-card-msf-4509>).

5. Who is a seafarer?

5.1 There are many roles which require the presence of workers on ships who are not seafarers. For example, an MCA surveyor may work on board ships at sea, but their normal place of work is not on board the ship. Similarly, a wind turbine technician will often travel on a seagoing vessel in order to reach their place of work, but their normal place of work is on the wind turbine, not on board the ship.

5.2 The MCA does not consider the following to be seafarers:

- privately contracted armed security personnel.
- contractors who attend the ship for commissioning, repair or decommissioning of its equipment
- those using the ship solely for accommodation at, or transport to, the place of work.

5.3 The applicant or their employer/sponsor must provide the following to demonstrate that they are a seafarer:

- evidence of STCW personal safety and social responsibility training (PSSR);
- a seafarer employment agreement or equivalent terms and conditions of employment; and
- application form MSF 4509 signed by the shipowner or an authorised representative of the shipowner (e.g. listed on the shipowner's DMLC part 2); or

- a letter from the shipowner, attesting that the applicant is engaged to work on board (name and flag of ship) for the period (provide dates or specify an unlimited period) and their normal place of work will be on board the ship (or ships).

5.4 For the avoidance of doubt, the signature of the master (unless the master is also the shipowner) or any member of ship's crew will not be accepted.

5.5 Travel on board a ship to the workplace, or overnight accommodation on board the vessel does not fulfil the requirement for the normal place of work on board the ship.

5.6 The MCA is consulting on this policy and the criteria for establishing eligibility as a seafarer for the purposes of issue of a discharge book may change as a result of that consultation. Therefore, issue of a discharge book to an applicant does not guarantee that the same applicant will qualify for a discharge book on renewal.

6. Process

6.1 The application form for a UK discharge book is MSF 4509 (<https://www.gov.uk/government/publications/application-for-a-discharge-book-and-or-british-seamans-card-msf-4509>). Applications should be made by post as original photographs are required. A hard copy is required together with original photographs and only paper copy application forms, containing original, "wet" signatures and stamps/seals will be accepted.

6.2 An application form must be accompanied by two identical, colour, passport-style photographs and payment of the statutory fee.

6.3 For a first discharge book, parts A, B, D, G and H of form MSF 4509 must be completed.

6.4 For continuation or replacement discharge books, parts A, B, F, G and H of form MSF 4509 must be completed.

6.5 All postal applications should be submitted to the following address:

Registry of Shipping and Seamen
Maritime and Coastguard Agency
Anchor Court
Keen Road, Cardiff

6.6 It is recommended that applications are submitted at least three weeks before the discharge book is required.

7. More information

Seafarer Safety and Health
Maritime and Coastguard Agency
Bay 2/17
Spring Place
105 Commercial Road
Southampton
SO15 1EG

Telephone: +44 (0)203 90 85200

Email: seafarer.registry@mcga.gov.uk

Website: www.gov.uk/mca (<https://www.gov.uk/mca>)

Annex A

A seafarer holding a discharge book or equivalent document issued by one of the following governments is not eligible for a UK discharge book;

- Bangladesh
- Barbados
- Canada
- Falkland Islands
- Fiji
- Ghana
- Guyana
- Hong Kong
- India

- Republic of Ireland
- Isle of Man
- Jamaica
- Kenya
- Kiribati
- Malaysia
- Malta
- Mauritius
- Nigeria
- Pakistan
- Papua New Guinea
- Saint Lucia
- Seychelles
- Sierra Leone
- Singapore
- South Africa
- Sri Lanka
- Tanzania
- Tonga
- Trinidad & Tobago
- Tuvalu
- Western Samoa
- Zambia

1. ILO Seafarers' Identity Documents Convention, 1958 (No. 108) or ILO Seafarers' Identity Documents Convention (Revised), 2003 (No. 185).



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